

If you are interested, here is the marketing affiliate assessment of the transaction.

----- Forwarded by Shelley Corman/ET&S/Enron on 08/22/2000

05:47 PM -----

Shelley Corman

08/22/2000 05:34 PM

To: Steven J Kean/NA/Enron@Enron

cc: Eric Thode/Corp/Enron@ENRON

Subject: Re: DRAFT PRESS RELEASE: NBP Announces Intent to Purchase ENA Assets in Powder River and Wind River Basins

The newly acquired gathering assets will be operated by employees of NBP Services Corp., whereas Northern Border Pipeline is operated by Northern Plains employees. There will be no common officers between NBP Services and Northern Plains and no shared employees. Thus, NBP Services employees as operator of non-jurisdictional assets will not be subject to the marketing affiliate rules and will be free to work in a complementary work relationship with ENA.

The press release makes it sound like Northern Border will operate both the jurisdictional and non-jurisdictional assets. You may want to make it clear that Northern Border Pipeline is operated by Northern Plains.

Steven J Kean

08/22/2000 04:50 PM

Sent by: Steven J Kean

To: Eric Thode/Corp/Enron@ENRON, Shelley Corman/ET&S/Enron@ENRON

cc:

Subject: DRAFT PRESS RELEASE: NBP Announces Intent to Purchase ENA Assets in Powder River and Wind River Basins

Eric - I think the release looks fine.

Shelley -- I take it there are no affiliate issues here (or they have been fully vetted)?

----- Forwarded by Steven J Kean/NA/Enron on 08/22/2000

04:49 PM -----

Eric Thode

08/22/2000 11:34 AM

To: Mark Frevert/NA/Enron@Enron, David W Delainey/HOU/ECT@ECT, John J Lavorato/Corp/Enron@Enron, Brian Redmond/HOU/ECT@ECT, Shonnie Daniel/HOU/ECT@ECT, Mark Whitt/DEN/ECT@Enron, Brian Bierbach/DEN/ECT@Enron, Jean Mrha/NA/Enron@Enron, Mark E Haedicke/HOU/ECT@ECT, Kenneth Lay/Corp/Enron@ENRON, Jeff Skilling/Corp/Enron@ENRON, Mark Koenig/Corp/Enron@ENRON, Paula Rieker/Corp/Enron@ENRON, Kathryn Corbally/Corp/Enron@ENRON, Scott Vonderheide/Corp/Enron@ENRON, Steven J Kean/NA/Enron@Enron, Mark Palmer/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Andrew S Fastow/HOU/ECT@ECT, Rex

Rogers/Corp/Enron@Enron

cc:

Subject: DRAFT PRESS RELEASE: NBP Announces Intent to Purchase ENA Assets in Powder River and Wind River Basins

Attached is a draft press release regarding NBP's intent to purchase ENA's assets in the Powder River and Wind River Basins. Please return all comments to me via e-mail by 5:00 pm on Tuesday, August 22. If you have any questions, please call me at ext. 3-9053.

Thanks.

Eric